tion brings actions, he is bound to defend actions too, but he is not bound to give a guarantee for ratification. Still sometimes, if there is doubt whether the order appointing him was made, I should say that a guarantee for ratification ought to be given. It follows that the *actor* in question performs the function of a *procurator*, and the Edict does not give him an action on the judgment, unless he is appointed on his own behalf. He can also accept a *constitutum*. The right to change an *actor* exists in the same cases as that to change a *procurator*. Even a *filiusfamilias* can be appointed *actor*.

7 ULPIANUS (*on the Edict* 10) Just as the prætor allowed an action on behalf of a municipality, so too he thought with great reason that the edict should be made to refer to actions against one. I should say too that where a legate has spent money on some concern of the municipality, he ought to be allowed an action against the municipal body. 1. What is owed to the corporation is not owed to the individual members, and what the corporation owes the individual members do not owe. 2. In the case of decurions and corporations in general, it is of no consequence whether the individuals all remain unchanged, or a part only remains or all are changed. If the number of corporate members comes down to one, it is still held on the whole that this one can sue and be sued, as the legal position of the whole number has devolved on one person and the appellation of corporation still remains.

8 JAVOLENUS (*extracts from Cassius* 15) If town communities fail to be defended by those persons who manage their property, and there are no corporeal effects belonging to the corporation of which possession can be taken by creditors, satisfaction ought to be given to the parties suing out of the debts due to the town.

9 POMPONIUS (*on Sabinus* 13) If you are coheir to some one along with a municipality, you and the body will have good mutual rights of action for division of the inheritance (*familiæ erciscundæ*). The same may be said of an action to determine boundaries, or to avert rain-water.

10 PAULUS (*Handbooks* 1) An *actor* may be appointed further for an *operis novi nuntiatio*, and to enter into stipulations, for instance a stipulation for payment of legacies, for making good *damnum infectum*, for one that a decree shall be obeyed, although it is true that the assurance should rather be given to a slave of